



United States
Attorney's Office
Western District of North Carolina



The United States And State Of North Carolina File False Claims Act Complaint Against Durable Medical Equipment Supplier

Monday, January 13, 2025

For Immediate Release

U.S. Attorney's Office, Western District of
North Carolina

CHARLOTTE, N.C. – U.S. Attorney Dena J. King announced today that the United States and the State of North Carolina have filed a complaint against Benson I. Ejindu in the United States District Court for the Western District of North Carolina, alleging that Ejindu knowingly submitted or caused to be submitted false claims to North Carolina Medicaid for more expensive medical supplies than were actually provided to the Medicaid recipients, a practice known as upcoding.

As alleged in the complaint, from at least May 19, 2017, through August 23, 2019, Ejindu, through a durable medical equipment business that he operated under different names, caused the submission of false claims to North Carolina Medicaid for high-reimbursing, specialized nutritional formula for individuals with rare, inherited metabolic disorders when Ejindu knew the Medicaid recipients actually received lower-reimbursing Ensure, PediaSure, Boost, and Glucerna drinks.

"Durable medical equipment providers that cause the government to pay more than it should for medical equipment and supplies waste taxpayers' dollars and raise the cost of health care for everyone," said U.S. Attorney King. "Our Office is committed to working with the North Carolina Attorney General's Office and our law enforcement partners to put a stop to improper billing practices that exploit Medicaid, a taxpayer funded program that many people depend on to cover their health care needs."

"Medical providers are required to comply with the law when billing Medicaid for services," said Special Agent in Charge Kelly Blackmon of the Department of Health and Human Services Office of Inspector General (HHS-OIG). "Together with our law enforcement partners, HHS-OIG is dedicated to investigating and addressing improper billing practices submitted to federally funded health care programs."

“North Carolinians rely on Medicaid to pay for health care and medical supplies,” said North Carolina Attorney General Jeff Jackson. “If businesses try to make an unlawful buck off of taxpayer dollars, we’ll hold them accountable. I’m grateful to U.S. Attorney King for working with us to stop health care fraud.”

This matter was investigated by the FBI, HHS-OIG, and the North Carolina Attorney General's Medicaid Investigations Division. This matter is being handled by Special Assistant United States Attorney Matthew R. Petracca of the North Carolina Attorney General's Office and Assistant United States Attorney Holly H. Snow of the U.S. Attorney's Office in Charlotte.

The claims asserted against the defendant are allegations only and there has been no determination of liability.

Updated January 13, 2025

Topic

FALSE CLAIMS ACT

Component

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